

Cognizable vs Non-Cognizable Offenses: Flowchart & Trick

Decision Tree for Criminal Procedure & Bail under BNSS 2023

Advocate Manisha Gandhi | Co-Founder, Law Glimpse - Academic Study Series

Mnemonic Trick: "W-I-B" (Warrant, Investigation, Bail)

1. COGNIZABLE OFFENSE:

- Warrant: Police can arrest WITHOUT warrant.
- Investigation: Police must register FIR & investigate WITHOUT Magistrate permission.
- Seriousness: Usually offenses punishable with 3+ years imprisonment.

2. NON-COGNIZABLE OFFENSE:

- Warrant: Police CANNOT arrest without warrant.
- Investigation: Must register NCR (Non-Cognizable Report) & seek Magistrate order.
- Seriousness: Petty or less serious offenses.

Quick Tip: Bail in bailable offenses is a matter of right (Section 478 BNSS / 436 CrPC).